

State of Alabama Unified Judicial System Form ARAP-24 (front) Rev. 10/2019			DOCKETING STATEMENT Appeal to the Supreme Court of Alabama <i>NOTE: completed Civil Case Cover Sheet must be attached</i>						
COUNTY			CIVIL ACTION NUMBER			TRIAL JUDGE			
I. APPELLANT(s)(list the parties appealing): Appellant's Attorney: _____ Address: _____ Phone: _____ Email: _____									
II. APPELLEE(S)(list the parties appealed): Appellee's Attorney: _____ Address: _____ Phone: _____ Email: _____									
III. APPELLANT IS THE TRIAL COURT: ☐ Plaintiff ☐ Defendant ☐ Other						IV. IS THIS A CROSS-APPEAL? ☐ Yes ☐ No			
V. RELIEF AWARDED/REQUESTED: please check the appropriate block (s): A. ☐ Monetary damages were either sought or awarded, as set out below: 1. Compensatory damages were: (a) ☐ awarded in the amount of \$ _____; (b) ☐ not awarded, but sought in the amount of \$ _____; (c) ☐ sought, but not awarded - the amount sought was not specified in the complaint. 2. Punitive damages were: (a) ☐ awarded in the amount of \$ _____; (b) ☐ not awarded, but sought in the amount of \$ _____; (c) ☐ sought, but not awarded - the amount sought was not specified in the complaint. 3. A general award of damages (not differentiating between compensatory and punitive) was: (a) ☐ made in the amount of \$ _____; (b) ☐ not made, but sought in the amount of \$ _____; (c) ☐ sought, but not made - the amount sought was not specified in the complaint. 4. Other monetary damages (Type: _____)were: (a) ☐ awarded in the amount of \$ _____; (b) ☐ not awarded, but sought in the amount of \$ _____; (c) ☐ sought, but not awarded - the amount sought was not specified in the complaint. 5. Was there a remittitur or additur at issue in the trial court? Yes No (if yes, please provide the details in the "FACTS" section on the back of this form) B. ☐ Equitable and/or declaratory relief was sought in the trial court C. ☐ Other (Please provide in the details of the issue(s) before the Court in the "ISSUES" section on the back of this form.)									
VI. TYPE OF JUDGMENT OR ORDER APPEALED. (Please check one) : A ☐ Judgment based on a jury Verdict D ☐ Order granting a New Trial G ☐ Dismissal B ☐ Judgment based on a Non-jury Decision E ☐ Judgment as a Matter of Law H ☐ Default Judgment C ☐ Judgment Notwithstanding the Verdict (JNOV) F ☐ Summary Judgment I ☐ Other									
VII. IF THE CASE WENT TO TRIAL, HOW MANY DAYS DID THE TRIAL TAKE? _____ Month Day Year									
VIII. FINALITY OF JUDGMENT: Date of entry of judgment or order appealed from: _____ Month Day Year 1. Is the judgment or order appealed from in compliance with Rule 58, Ala.R.Civ.P.? ☐ Yes ☐ No 2. Does the order appealed from constitute a disposition of all claims as to all parties? ☐ Yes ☐ No 3. If not, did the trial court enter an order intended to make the order final pursuant to Rule 54(b), Ala. R. Civ. P.? ☐ Yes ☐ No 4. If the trial court intended to make the order appealed from final pursuant to Rule 54 (b), Ala. R. Civ. P., did the court in the Rule 54 (b) order expressly determine that there was no just reason for delay and expressly direct that final judgment be entered? ☐ Yes ☐ No 5. If the answer to question 2 is "NO" , and the trial court did not make the order final by full compliance with Rule 54(b), Ala. R. Civ. P., please explain the basis for seeking appellate review and cite the authority for this appeal: _____ _____									
IX. POST-JUDGMENT MOTIONS: List all post-judgment motions by date of filing, type, and date of disposition (whether by trial court order or by the provisions of Rule 59.1, A.R.Civ.P.):									
DATE OF FILING			TYPE OF POST-JUDGMENT MOTION				DATE OF DISPOSITION		
Month	Date	Year					Month	Date	Year

DOCKETING STATEMENT Appeal to the Supreme Court of Alabama**X. CONSTITUTIONAL ISSUES:**

1. Are the provisions of Rule 44, Ala.R.App.P., applicable to this appeal?
 2. If so, have the provisions been complied with?

☐ Yes ☐ No
☐ Yes ☐ No

XI. NATURE OF CASE ON APPEAL: In the left column of boxes proceeding the categories listed below, check the box (check only one) that best describes or categorizes the basis or theory of the primary issue on appeal. In the right column of boxes, check any secondary theories that are applicable to the suit.

TORTS:

- 01 ☐ ☐ Bad Faith
 02 ☐ ☐ Fraud
 03 ☐ ☐ Legal Malpractice
 04 ☐ ☐ Medical Malpractice
 05 ☐ ☐ Other Malpractice
 06 ☐ ☐ Products/AEMLD
 07 ☐ ☐ Negligence (Vehicular)
 08 ☐ ☐ Negligence (Gen./other)
 09 ☐ ☐ Personal Property

- 10 ☐ ☐ Real property
 11 ☐ ☐ Wrongful Death (All Types)
 12 ☐ ☐ Wantonness
 13 ☐ ☐ Conversion
 14 ☐ ☐ Wrongful Employment Termination
 15 ☐ ☐ Premises Liability
 16 ☐ ☐ Outrage
 29 ☐ ☐ Other: _____
CONTRACTS:
 30 ☐ ☐ Commercial

- 31 ☐ ☐ Personal
 32 ☐ ☐ Pension
 33 ☐ ☐ Insurance
 34 ☐ ☐ Employment
 39 ☐ ☐ Other: _____

OTHER:

- 40 ☐ ☐ Real Property
 41 ☐ ☐ Civil Rights (Prisoner)
 42 ☐ ☐ Civil Rights (Other)
 43 ☐ ☐ Wills/Trusts/Estates

- 44 ☐ ☐ Declaratory Judgment
 45 ☐ ☐ Injunction (Commercial)
 46 ☐ ☐ Injunction (Employment)
 47 ☐ ☐ Injunction (Other)
 48 ☐ ☐ Extraordinary Writ Pub.
 49 ☐ ☐ Service Comm. RR/
 50 ☐ ☐ Seaman (FELA)
 51 ☐ ☐ RICO
 99 ☐ ☐ Other: _____

XII. APPELLATE REVIEW: Please take notice that your case may be initially reviewed by the Court of Civil Appeals. Pursuant to § 12-2-7, Ala. Code 1975, the Supreme Court has the authority to transfer any civil case within its jurisdiction to the court of Civil Appeals, except cases presenting a substantial question of federal or state constitutional law; cases involving a novel legal question, the resolution of which will have significant statewide impact; utility rate cases appealed pursuant to § 31-1-140, Ala. Code 1975, bond validation cases appealed pursuant to § 6-6-754, Ala. Code 1975, or Alabama State bar disciplinary proceedings. If you believe this case should not be transferred to the Court of Civil Appeals, please state with specificity the reason(s) why it should not be transferred, referring to pertinent sections of § 12-2-7. Reasons should be supported in the ISSUES and FACTS sections of this docketing statement.

XIII. ISSUES: Briefly summarize the issue(s) on appeal.

XIV. FACTS: Without argument, briefly summarize the facts to inform the court of the nature of the case.

Date _____

Signature of Attorney/Party Filing this Form _____

Printed Name _____

Certificate of Service

I certify I have this date filed electronically with the clerk of the trial court the foregoing docketing statement through the trial court electronic-filing system or that I have this date hand-filed the original and _____ (number) copies of the foregoing docketing statement. A true or electronic copy of the docketing statement will be served by the clerk of the trial court or by the trial court's electronic-filing system on each of the following: (1) the clerk of the appellate court; (2) the court reporter; and (3) attorney for each appellee or the appellee if no attorney as follows (provide names and addresses):

I further certify pursuant to Rules 3(d), 25(d), and 57(h)(5), Alabama Rules of Appellate Procedure, that I have this date served a copy of this Notice of Appeal on each party to the proceedings in the trial court in the manner indicated below (attach additional pages if necessary):

Name of PartyMethod of Service (US Mail, AlaFile, etc.)Service Address

_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

*If electronic service is selected, the e-mail address at which service was made via AlaFile must be listed as the service address.

Date: _____, 20_____.

(Signature of Appellant or Attorney for Appellant)

(Printed Name)